

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

Index No.:
Date Purchased:
SUMMONS

SUSAN RAIA and THOMAS RAIA,

Plaintiffs,

- against -

GGP STATEN ISLAND MALL, LLC and ABCO
MAINTENANCE, INC.,

Defendants.

Plaintiffs designate Richmond
County as the place of trial.

The basis of venue is:
Plaintiffs' Residence

Plaintiffs reside at:
5 Windham Loop
Staten Island, NY 10314
County of Richmond

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Staten Island, New York
April 19, 2016


GLEN DEVORA
JONATHAN D'AGOSTINO & ASSOCIATES, P.C.
Attorneys for Plaintiff(s)
3309 Richmond Avenue
Staten Island, New York 10312
718-967-1600
Our File No. Q16943-F141011

TO: GGP STATEN ISLAND MALL, LLC
2655 Richmond Avenue
Staten Island, New York 10314
c/o Secretary of State

ABCO MAINTENANCE, INC.
834 Morrow Street
Staten Island, New York 10303
c/o Secretary of State

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

SUSAN RAIA and THOMAS RAIA,

Plaintiffs,

- against -

GGP STATEN ISLAND MALL, LLC and ABCO
MAINTENANCE, INC.,

Defendants.

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VERIFIED COMPLAINT

Plaintiffs, by their attorneys, JONATHAN D'AGOSTINO & ASSOCIATES, P.C., complaining of the Defendants, respectfully allege, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF SUSAN RAIA

1. That at the time of the commencement of this action, Plaintiffs **SUSAN RAIA** and **THOMAS RAIA** resided in the County of Richmond, State of New York.
2. That at all times herein mentioned, Defendant **GGP STATEN ISLAND MALL, LLC** maintained a residence in the County of Richmond, State of New York.
3. That at all times herein mentioned, Defendant **ABCO MAINTENANCE, INC.** maintained a residence in the County of Richmond, State of New York.
4. That the cause of action alleged herein arose in the County of Richmond, City and State of New York.
5. That this action falls within one or more of the exemptions set forth in CPLR §1602.
6. That at all times hereinafter mentioned, Defendant **GGP STATEN ISLAND MALL, LLC** was and still is a domestic corporation duly organized and existing under and by virtue of the laws of the State of New York.
7. That at all times herein mentioned, Defendant **GGP STATEN ISLAND MALL, LLC** was and still is a foreign corporation duly authorized to do business in the State of New York.
8. That at all times hereinafter mentioned, Defendant **GGP STATEN ISLAND MALL, LLC** maintained a principal place of business in the County of Richmond, City and State of New York.

9. That at all times hereinafter mentioned, Defendant **ABCO MAINTENANCE, INC.** was and still is a domestic corporation duly organized and existing under and by virtue of the laws of the State of New York.

10. That at all times herein mentioned, Defendant **ABCO MAINTENANCE, INC.** was and still is a foreign corporation duly authorized to do business in the State of New York.

11. That at all times hereinafter mentioned, Defendant **ABCO MAINTENANCE, INC.** maintained a principal place of business in the County of Richmond, City and State of New York.

12. That on November 10, 2014, and at all times herein mentioned, Defendant **GGP STATEN ISLAND MALL, LLC** owned 2655 Richmond Avenue, Staten Island, New York.

13. That on November 10, 2014, and at all times herein mentioned, Defendant **GGP STATEN ISLAND MALL, LLC** owned the parking lot adjacent to 2655 Richmond Avenue, Staten Island, New York.

14. That at all times herein mentioned, the aforesaid parking lot was operated by Defendant **GGP STATEN ISLAND MALL, LLC**.

15. That at all times herein mentioned, the aforesaid parking lot was managed by Defendant **GGP STATEN ISLAND MALL, LLC**.

16. That at all times herein mentioned, the aforesaid parking lot was controlled by Defendant **GGP STATEN ISLAND MALL, LLC**.

17. That at all times herein mentioned, the aforesaid parking lot was maintained by Defendant **GGP STATEN ISLAND MALL, LLC**.

18. That at all times hereinafter mentioned, the Defendant **GGP STATEN ISLAND MALL, LLC** repaired the aforesaid parking lot.

19. That on November 10, 2014, and at all times herein mentioned, Defendant **ABCO MAINTENANCE, INC.** owned 2655 Richmond Avenue, Staten Island, New York.

20. That on November 10, 2014, and at all times herein mentioned, Defendant **ABCO MAINTENANCE, INC.** owned the parking lot adjacent to 2655 Richmond Avenue, Staten Island, New York.

21. That at all times herein mentioned, the aforesaid parking lot was operated by Defendant **ABCO MAINTENANCE, INC.**

22. That at all times herein mentioned, the aforesaid parking lot was managed by Defendant **ABCO MAINTENANCE, INC.**

23. That at all times herein mentioned, the aforesaid parking lot was controlled by Defendant **ABCO MAINTENANCE, INC.**

24. That at all times herein mentioned, the aforesaid parking lot was maintained by Defendant **ABCO MAINTENANCE, INC.**

25. That at all times hereinafter mentioned, the Defendant **ABCO MAINTENANCE, INC.** repaired the aforesaid parking lot.

26. That on November 10, 2014, while Plaintiff was lawfully at the aforesaid location, Plaintiff was caused to trip and fall and sustain severe and permanent injuries.

27. The above mentioned occurrence, and the results thereof, were caused by the negligence of the Defendants and/or said Defendants' servants, agents, employees and/or licensees in the ownership, operation, management, maintenance and control of the aforesaid premises.

28. That no negligence on the part of the Plaintiff contributed to the occurrence alleged herein in any manner whatsoever.

29. That by reason of the foregoing, Plaintiff **SUSAN RAIA** was caused to sustain serious injuries and to have suffered pain, shock and anguish; that these injuries and their effects will be permanent; and as a result of said injuries Plaintiff has been caused to incur, and will continue to incur, expenses for medical care and attention; and, as a further result, Plaintiff was, and will continue to be, rendered unable to perform Plaintiff's normal activities and duties and has sustained a resultant loss therefrom.

30. That by reason of the foregoing, Plaintiff **SUSAN RAIA** was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THOMAS RAIA

31. Plaintiff **THOMAS RAIA** repeats, reiterates and realleges each and every allegation contained in the First Cause of Action with the same force and effect as though set forth herein at length.

32. That at all times hereinafter mentioned, Plaintiff **THOMAS RAIA** was the spouse of the Plaintiff **SUSAN RAIA** and as such was entitled to the society, services and consortium of his spouse, **SUSAN RAIA**.

33. That by reason of the foregoing, Plaintiff **THOMAS RAIA** was deprived of the society, services and consortium of the Plaintiff **SUSAN RAIA** and shall forever be deprived of said society, services and consortium.

34. That by reason of the foregoing, Plaintiff **THOMAS RAIA** was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiffs demand judgment against the Defendants herein, on all causes of action, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: Staten Island, New York
April 19, 2016



GLEN DEVORA
JONATHAN D'AGOSTINO & ASSOCIATES, P.C.
Attorneys for Plaintiff(s)
3309 Richmond Avenue
Staten Island, New York 10312
718-967-1600
Our File No. Q16943-F141011

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK

ss:

COUNTY OF RICHMOND

SUSAN RAIA, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

DATED: Staten Island, New York

April 21, 2016



SUSAN RAIA

Sworn to before me

4/21/16



Notary Public

KRISTEN LEE SCAVO
Notary Public, State of New York
No. 01SC6206208
Qualified in Richmond County
Commission Expires 05/18/2017